

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

Nouhan Kante

:

:

Index Number:

Date Purchased:

Date Filed:

Plaintiffs

:

SUMMONS

-against-

:

City of New York, New York City Police Department,

:

Police Officer Michael Meneses, Shield 11225 of the

:

44 Precinct and New York City Police Officers John Doe,

:

:

Plaintiff's residence is:

963 Sheridan Avenue

Bronx, NY 10455

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: October 28, 2024
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

City of New York, New York City Police Department

Police Officer Michael Meneses, Shield 11225 of the 44 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
Nouhan Kante,	:	
	:	
Plaintiffs	:	VERIFIED COMPLAINT
	:	
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Michael Meneses, Shield 11225 of the	:	
44 Precinct and New York City Police Officers John Doe,	:	
	:	
Defendants	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Nouhan Kante, (hereinafter referred to as “KANTE”) resides in Bronx, State of New York.
2. That at all times hereinafter mentioned, Police Officer Michael Meneses, Shield 11225 of the 44 Precinct, (hereinafter referred to as “MENESES”) was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe, involved in the arrest of Plaintiff (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
6. On or about August 29, 2023 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
7. On or about February 8, 2024, a hearing required by Municipal Law 50-H was held. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim.
8. That on or about July 29, 2023 at approximately 10:00 PM in the vicinity of McLellan Street and Sheridan Avenue, Bronx, NY Plaintiff was on his way from a local Bronx store when he was stopped, handcuffed and arrested by MENESES and DOES for no lawful reason.
9. That at no time was Plaintiff in possession of a weapon.
10. That at not time was Plaintiff in possession of ammunition.
11. That at no time had Plaintiff operated a motor vehicle and left the scene of an incident causing damage without reporting said incident.
12. That at no time did Plaintiff engage in any unlawful or illegal behavior.
13. That despite the above, Plaintiff was arrested he was transported to the 44 Precinct.

14. That after Plaintiff arrived at the 44 Precinct he was placed into a cell with other male prisoners.
15. That after Plaintiff arrived at the 44 Precinct he was strip searched and nothing illegal or unlawful was recovered.
16. That after being held for several hours at the 44 Plaintiff was transferred to Bronx Central Booking located at 215 East 161 Street, Bronx NY.
17. While at Bronx County Central Booking, Plaintiff was placed into numerous cells with numerous other prisoners.
18. That on or about July 30, 2023 Plaintiff was arraigned on docket CR-013385-23BX charging him with Criminal Possession of Weapon in the Second Degree and related offenses.
19. That at the time of his arraignment, bail was set and Plaintiff was remanded to the custody of the New York City Department of Corrections.
20. That on or about July 31, 2023 Plaintiff was released from custody after paying bail.
21. That when Plaintiff made numerous court appearance between July 30, 2023 and August 17, 2023 when the case was dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

22. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21, as if more fully stated herein at length.
23. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

24. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

25. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

26. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day onward.

27. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

28. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.

29. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

30. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. The intentional verbal abuse, false arrest, false imprisonment and maliciously prosecuted by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

32. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

33. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.

34. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

37. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

38. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by claiming that Plaintiff possessed a weapon and left the scene of a motor vehicle accident when they knew he had not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

39. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. At all times pertinent hereto, MENESES and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

41. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that MENESES and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

42. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. The City of New York and New York City Police Department's failure to provide adequate training and supervision to MENESES and DOES constitutes a willful and wanton

indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

44. That the City of New York and New York City Police Department tolerated and knew that members of the NYPD would arrest people in the vicinity of where crimes happened even though there was not enough evidence to support an arrest constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

45. That the City of New York and New York City Police Department knew that MENESES was the subject of eight (8) prior Civilian Complaint Review Board complaints wherein it was alleged that he violated the civil rights of others, two (2) of which were substantiated for unlawful an unlawful stop and an unlawful frisk and yet they continued to employ him.

46. That the City of New York and New York City Police Department knew that MENESES was the subject of one (1) disciplinary case stemming from above unlawful stop and frisk and yet they continued to employ him.

47. That the City of New York and New York City Police Department knew that MENESES was the subject of a civil rights lawsuit, Juan Rivera as Admin of The Estate of Daniel Rivera v. City of New York, et al., index # 803469/2024E, Bronx County Supreme Court and yet they continued to employ him.

48. That the City of New York and New York City Police Department knew that MENESES was the subject of a civil rights lawsuit, Tylia Matthews et al v. City of New York, et al. index # 802038/2024E, Bronx County Supreme Court and yet they continued to employ him.

49. That the City of New York and New York City Police Department knew that MENESES was the subject of a civil rights lawsuit Jason Peguero, et al v. City of New York, et al. index # 806640/2023E, Bronx County Supreme Court and yet they continued to employ him.

50. That the City of New York and New York City Police Department knew that MENESES was the subject of a civil rights lawsuit Eury Acosta v. City of New York, et al. index # 804419/2022E, Bronx County Supreme Court and yet they continued to employ him.

51. That the City of New York and New York City Police Department knew that MENESES was the subject of a civil rights lawsuit C. E. an Infant By His Mother, Krystal Delvalle v. City of New York, et al., index # 804435/2022E, Bronx County Supreme Court and yet they continued to employ him.

52. That the City of New York and New York City Police Department knew that MENESES was the subject of a civil rights lawsuit Alex Mcnealy, et al. vs City of New York, et al., index # 029280/2020, Bronx County Supreme Court and yet they continued to employ him.

53. That the City of New York and New York City Police Department knew that MENESES was the subject of a civil rights lawsuit Aaron Santiago v. City of New York, et al., index # 034034/2018E, Bronx County Supreme Court and yet they continued to employ him.

54. That the City of New York and New York City Police Department knew that MENESES was the subject of a civil rights lawsuit Aaron Santiago v. City of New York, et al., index # 034034/2018E, Bronx County Supreme Court and yet they continued to employ him.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

55. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54, as if more fully stated herein at length.

56. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

57. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

ATTORNEY VERIFICATION

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: October 28, 2024

Jason Steinberger
Jason A. Steinberger